

Serious Fraud Investigation Office Vs Adarsh Build Estate Ltd. & 186 others

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Present: Shri Hari Kishan, Senior Prosecutor for SFIO along-with Shri Lokender Singh Raghav, Standing Government Counsel for the complainant -SFIO.

Accused Vivek Harivasi (**115**) and (**140**) on interim bail granted by Hon'ble Apex Court vide orders dated 17.12.2020 and 29.10.2021 respectively.

Accused Leena Harivassi (**146**) and Damyanti Bhandari (**179**) not present but represented by Sh. Vivek Tanwar, Advocate and Sh. Sanjay Gupta, Advocate.

Accused Leena Harivassi (**146**), Vimal Sanwal Sharma (**147**), Vijay Shukla (**149**), Ajit Singh (**150**), 154, Ramlal Arya (**158**), Hemant Kumar (**159**), Parveen Kumar (**161**), Ravi Kr. Tak (**166**), Raj Kumar Bohra (**171**), Raj Kumar Modi (**176**), Dishan 182 to 186 in person being on bail.

Accused Mahesh Dutt Sharma (No. **178**) not present but represented by Sh. J.H. Khan, Advocate. Interim protection granted by Hon'ble High Court vide order dated 10.08.2020, which has been continued vide last order dated **25.08.2022** till **21.09.2022**.

Accused Akshat Singh (No. **136**) on bail represented by Sh. Vishal Gupta, Advocate.

Accused Abhay K. Shah (No. **127**) not present but represented by Ms. Manisha Singh, Advocate. Anticipatory bail is pending for consideration before Hon'ble High Court.

Accused Shiv Raj Sharma (No. **160**) not present but represented by Sh. Anil Kumar Yadav, Advocate.

Accused Hemant Kumar Jain (No. **159**) on bail represented by Ms. Sunita Saini, Advocate.

AR Kanak Krishi of accused Company (No. **106**) not present but represented by Sh. Nitish Bhardwaj, Advocate.

AR Devender Kumar of accused Company (No. **112**) not present but represented by Sh. Anubhav Almadi, Advocate.

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Accused Jainam Rathore (No. **130**) on bail granted by Hon'ble Supreme Court vide order dated 18.04.2022 in SLP No. 1554 of 2022 with Sh. J.H. Khan, Advocate.

Accused Nitin Rathor (No. **116**) not present but represented by Sh. Sameer Pandey, Advocate. Anticipatory bail of accused is pending for consideration before the Hon'ble High Court.

Sh. Manul Mitra, Advocate for accused Meenakshi Modi (No. **132**) and Neha Ghemawat Modi (No. **124**).

Sh. Neeraj Dev Gaur, Advocate for accused Raj Kumar Bohra (No. **171**).

Sh. Neeraj Dev Gaur, Advocate for accused Megha Chauhan (No. **163**).

Accused nos. **144,145,148,151** on bail but granted personal personal exemption till further orders vide order dated 22.11.2019, represented through Shri Vishal Gupta, Advocate.

Accused Nos. **156** and **157** on bail but exempted from personal appearance till further order vide order 31.01.2020, represented through Shri Piyush Jain, Advocate.

Accused Nos. **163** and **164** on bail but exempted from appearance for today only, represented through Shri Neeraj, Advocate.

Accused Nos. **167, 168, 169** on bail but granted permanent exemption) vide order dated 04.09.2019, represented through Shri Rakesh Kumar, Advocate.

Accused No. **174** on bail but granted personal exemption till further order vide order dated 19.02.2021, represented through Shri Dinesh Kumar, Advocate.

Accused Nos. **180, 181** on bail but granted personal exemption till further orders vide order 22.11.2019, represented through Ms. Manisha Singh, Advocate.

Accused Nos. **1** to **70**, companies, represented through accused Rahul Modi (123) in custody in Jaipur jail.

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Accused Nos. **71** to **78** , companies, represented through accused Sidharth Chauhan (**135**) on interim bail granted by Hon'ble High Court.

Accused No. **79** , company represented through accused Vivek Hari Vyas (**115**) presently on interim bail granted by Hon'ble apex Court vide order dated 17.12.2020

Accused Nos. **80**, company, represented through accused Naveen Kumar (**139**).

Accused Nos. **81** and **82**, companies, represented through accused Surender Singh (140) who is on interim bail granted by Hon'ble Apex Court vide order dated 29.10.2021.

Accused Nos. **84**, company, represented through accused Abhya K. Shah (**127**).

Accused Nos. **85**, company, represented through accused Jainam Rathod (No.130).

Accused Nos. **86**, **87** and **88** , companies, represented through AR Ravi Kumar Tak, AR (**166**) on bail in person

Accused No. **89**, company, represented through accused Raj Kumar Bohra (171) on bail in person.

Accused Nos. **90** to **93**, companies, represented through accused Vivek Hari Vyas (**115**), on interim bail granted by Hon'ble Apex Court vide order 17.12.2020

Accused Nos. **94** to **97** , companies, represented through Shri Rahul, AR, in person

Accused Nos. **98**, company, represented through Shri Naresh Kumar, AR, in person

Accused Nos. **99** and **100**, companies, represented through accused Raj Kumar Modi (**176**) on interim bail granted by Hon'ble apex Court vide order 16.08.2021

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Accused No. **101**, company, represented through Shri Abhishek, AR, in person

Accused No. **102**, company, represented through Shri Deepak, AR, in person

Accused No. **103**, company, represented through Shri Dharmender, AR, in person

Accused No. **104**, company, represented through Shri Pawan Sharma, AR, in person

Accused No. **105**, company, represented through Shri Anup AR, in person

Accused No. **106**, company, represented through Shri Kashi Nath Jha, AR, in person

Accused No. **107**, company, represented through Shri Fateh Singh, AR, in person

Accused No. **108**, company, represented through Shri Ranjan Kumar, AR, in person

Accused No. **109**, company, represented through Shri Vikas Paul, AR, in person

Accused Nos. **110**, company, represented through Shri Raju Yadav, AR, in person

Accused No. **111** company, represented through Shri Ritik Sharma, AR, in person

Accused Nos. **112**, company, represented through Shri Devender, AR, in person.

Accused No **113** is not produced by Jaipur Jail authorities as he is shifted to Badmer Rajasthan Jail.

Accused nos. **114,120,122,123,125,126,131,134,142** are not produced by Jaipur Jail authorities as they are shifted to Jodhpur Jail.

Proceeding under Section 174-A Cr.PC initiated vide order dated 27.07.2022 against accused Vinay Kumawat (119), Sudhir Punia (143), as proclaimed persons.

None for the accused Nos. **83**.

Accused (No. **187**) Mahesh Kumar Tak absent.

Proceedings qua accused Mahender Kumar Tak (155) and Vijay Kumar Jindal (175) abetted vide order dated 25.03.2022.

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Today the case is listed in terms of order dated 02.07.2022 for the purpose as under:

(Production warrants of accused)

Accused Rajiv Kumar Rana (No. 177) has not been produced through video conferencing as video conferencing is not working due to some technical error. Now, production warrant of accused Rajiv Kumar Rana (177) be issued for 09.12.2022, through video conferencing.

Accused namely Mukesh Modi (113) not produced by the Jail Authority by the District Jail Jaipur. It has been reported by the Naib Court that accused Mukesh Modi (113) has been transferred to District Badmer Rajasthan from District Jail Hanumangarh Rajasthan. Hence, production warrant of accused Mukesh Modi (113) be issued to District Jail Badmer, Rajasthan for producing through video conferencing on 18.10.2022.

Accused namely Rahul Modi (114), Vaibhav Lodha (120), Rohit Modi (123), Rajeshwar Singh (125), Bharat Modi (126), Ishwar Singh Sindal (131), Vivek Purohit (134), Bharat Das Vaishnav (142) have not been produced through Video Conferencing from Jodhpur Jail. Let, the production warrants of accused Rahul Modi (114), Vaibhav Lodha (120), Rohit Modi (123), Rajeshwar Singh (125), Bharat Modi (126), Ishwar Singh Sindal (131), Vivek Purohit (134), Bharat Das Vaishnav (142) be issued to the Superintendent, Jodhpur Jail for 09.12.2022 for appearance of accused through VC.

(Warrants of Arrest)

Warrant of arrest issued against accused namely **Mahesh Kumar Tak (187)** received back unexecuted. Let fresh warrants of arrest be issued against accused Mahesh Kumar Tak (187) for 09.12.2022 and the same be got executed through special messenger. A red ink note be given that in case of non-execution of warrant he shall appear in person and explain the reason on the date fixed.

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(Approvers)

Learned Special Public Prosecutor has further informed that there are five accused persons namely **Parveen Kumar (161)**, **Nimesh Kumar Ramesh Soni (182)**, **Ritu Raj Singh (183)**, **Shashank Singh Rathore (185)**, **Shiv Raj Sharma (162)** and **Jitesh Kumar Parmar (186)**, who were granted bail by Hon'ble High Court on the ground that they shall co-operate with the prosecution, as approvers. He also intimated that applications of these accused are on record to this effect. He further requested to record their statements in accordance with law. Heard. In view of the directions issued by Hon'ble High Court, all the said accused are directed to remain present on **09.12.2022** for recording of their respective statements as approvers. Learned Prosecutor is directed to update himself with latest law and procedure to assist the Court in respect of recording statements of approvers.

(Awaiting further orders)

As far as accused Siddharth Chauhan (**135**) is concerned, counsel appearing on behalf of accused has placed on record copy of orders dated 04.08.2022 and 25.08.2022, passed by Hon'ble High Court in CRM-M-27904-2022 (O&M) and order dated has prayed that PO proceeding may be adjourned qua accused Siddharth Chauhan (**135**). Heard. The PO proceedings qua accused Siddhartha Chauhan (**135**) is adjourned beyond the date fixed in the Hon'ble High Court. Now to come up on **29.11.2022** *for awaiting further orders of Hon'ble High Court.*

Similarly, the Hon'ble High Court has pleased to adjourn the P.O. proceedings qua the accused Nitin Rathore (**116**), Abhay K. Shah (**127**), Jinender Vyas (**No.118** CRM-M-3174 of 2019); Paras Bolia (**No. 121** CRM-M-25412 of 2020); Manish Chaudhar (**No. 128** CRM-M-27804 of 2022); Deepak Shirmali (**No. 129** CRM-M-25084 of 2022); Parkash Chand Purohit (**No. 133** CRM-M-25516 of 2022); Shinder Pal Singh and Gurbeer Singh

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Sandhu (No. 137 and 138 CRM-M-27845 of 2022); Aditya Sarda (No. 141 CRM-M-17518 of 2022); Nazma Khan and Shabbir Khan (No. 152 and 153 CRM-M-25052 of 2022 and CRM-M-25054 of 2022); Naveen Chaudhary (No. 162 CRM-M-25508 of 2022); Shyam Bihari Gupta (No. 165 CRM-M-17096 of 2022); Sudhir Mehta (No. 170 CRM-M-9417 of 2021); Saurabh Tak (No. 172 CRM-M-24299 of 2022) and Rajiv Kumar Rana (No. 177 CRM-M-13648 of 2022) beyond the date fixed by Hon'ble High Court i.e. 25.08.2022. Hence, PO proceedings qua the above-said accused persons is adjourned to **09.12.2022** and also for awaiting order of Hon'ble High Court.

Accused namely Vivek Harivyasi (115), Surender Singh (140), Raj Kumar Modi (176) are on interim bail granted by the Hon'ble Supreme Court vide orders dated 17.12.2020, 29.10.2021 and 16.08.2021 respectively. Now to come up on **09.12.2022** for appearance.

Accused namely Vijay Shukla (149) has been granted interim protection by the Hon'ble Supreme Court vide order dated 26.10.2021. Accused present in person. Now to come up on **09.12.2022** for appearance.

Accused No. 117 Priyanka Modi on regular bail in terms of order dated 07.02.2022 passed by the Hon'ble Supreme Court. Now to come up on **09.12.2022** for appearance.

(Accused Not Appeared Exemption Filed)

Applications under Section 317 Cr.P.C. for dispensing with the personal appearance of the applicant/accused and permitting them to cause appearance by their pleaders have been filed on behalf of accused Abhay K. Shah (127), Leena Harivyasi (146), Mahesh Dutt Sharma (178), Damyanti Bhandari (179) and Ichchhita Dungarwal (180). Heard. Keeping in view of the grounds mentioned in the application, the aforesaid applications are allowed and the accused Abhay K. Shah (127), Leena Harivyasi (146), Mahesh Dutt Sharma (178), Damyanti Bhandari (179) Ichchhita Dungarwal (180) are exempted from

personal appearance for today only. Now to come up on **09.12.2022**, the date already fixed.

(Fresh Application seeking permanent exemption)

An application for permanent exemption of accused Neha Kataria (181), filed today. As the proceedings has been stayed and also granted personal exemption till further orders vide order 22.11.2019. Hence, adjourned to **09.12.2022**, for further orders.

No further order of Hon'ble Rajasthan High Court against accused Meenakshi Modi (132) and Neha Ghemawat Modi (124), received. Now to come up on **09.12.2022** for further orders.

(Accused present on bail for appearance)

Accused No. 117 Priyanka Modi on regular bail in terms of order dated 07.02.2022 passed by the Hon'ble Supreme Court. Now to come up on **09.12.2022** for appearance.

(Application under Section 317 Cr.P.C. for personal appearance filed)

An application under Section 317 Cr.P.C. on behalf of applicant/accused No.160 Shiv Raj Sharma, filed. Copy supplied. Learned Sr. Public Prosecutor for complainant-department has vehemently opposed his application and prayed for dismissal of the same on the ground that his anticipatory bail application has already been dismissed before this Court as well as before Hon'ble High Court. The application for approvers was also dismissed before the Hon'ble High Court. Heard. In view of the submission made by the learned Public Prosecutor as well as facts of the case, the application under Section 317 Cr.P.C. for appearance through his pleader is hereby dismissed. Now, to come up on **09.12.2022** for appearance.

(Exemption application of accused No. 173/Piyush)

An application under Section 205 Cr.P.C. seeking exemption of personal appearance of applicant/accused No. A-173 Piyush has been filed. The anticipatory bail application was dismissed by this Court vide order dated 27.09.2022. It is averred in the application that applicant Piyush has filed application for anticipatory bail before the Hon'ble High Court. Learned counsel contends that the accused is not running from the law and applied for anticipatory bail before the High Court this shows that he is abiding by law.

Learned Public Prosecutor for complainant department has opposed the request.

Heard. In the Hon'ble High Court many SFIO cases earlier of order this court for deciding anticipatory bail application are pending in certain matters and on account of pendency of bail application there is no force, therefore, the arguments of learned Public Prosecutor cannot be considered at this stage. The proceedings regarding initiation of proceedings under Section 82 Cr.PC kept in abeyance till next date. The proclamation proceedings will be initiated after receiving the orders from Hon'ble High Court. Now to come up on **09.12.2022** for awaiting orders from Hon'ble High Court.

Date of order: 18.10.2022

(Dr. Virender Parshad)
Additional Sessions Judge-cum-
Special Judge, Gurugram.
(UID No. HR0082)